



United States Department of the Interior
BUREAU OF LAND MANAGEMENT
<https://www.blm.gov>



JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION (JOFOC)
Over \$250,000

In accordance with FAR 13.501(a)(1)(ii), this document sets forth the justification and approval using the format of FAR 6.303-2, modified to reflect that the procedures in FAR subpart 13.5 were used in accordance with 41 U.S.C. 1901 for a direct award under the Good Neighbor Authority.

1. Identification of the Agency and the Contracting Activity:

Background: The Bureau of Land Management (BLM) manages public lands across the United States, including aquatic ecosystems. To assess the condition and trends of these aquatic systems, the BLM developed the National Aquatic Monitoring Framework (NAMF). This framework aims to monitor chemical, physical, and biological conditions in wadeable perennial streams and rivers (lotic systems).

The purpose of this document is to justify the use of other than full and open competition for procuring aquatic monitoring services.

The Department of the Interior, Bureau of Land Management (BLM), Headquarters, Division of Wildlife, Aquatics, and Environmental Protection, requests the National Operations Center (NOC) acquisitions office located at the Denver Federal Center, Denver, Colorado, to contract on a sole source basis under the Good Neighbor Authority. The aquatic monitoring services required for this acquisition fit under the Good Neighbor Authority as authorized restoration services and other activities to restore or improve watershed health, including fish and wildlife habitat. The GNA allows collaboration with federal state and local agencies leveraging their knowledge of local ecosystems and ensuring effective monitoring. This authority allows federal agencies to partner with state and local governments to enhance forest management, wildfire prevention, and other natural resource projects.

As stated in BLM's GNA Policy Guidance provided in BLM's Instruction Memorandum (IM) 2022-023, the Good Neighbor Authority permits the Bureau of Land Management (BLM) to enter into an agreement or contract (including sole source) to perform qualifying projects on lands as provided in the authorizing statute (16 U.S.C. 2113a). As provided in the authorizing statute (16 U.S.C. 2113a), in order for a project to qualify as a GNA project, the below listed criteria must be met. *These criteria are included in Exhibit 1 of BLM's GNA Policy Guidance*

1. The project consists of Authorized Restoration Services, which includes treatment of insect and disease infected trees, hazardous fuels reduction, or any other activities to restore or improve forest, rangeland, and watershed health, including fish and wildlife habitat.
2. The agreement or contract is with an entity of state or county government or an Indian tribe. These entities will herein be referred to as cooperating entities.
3. The project does not include construction, reconstruction, repair, or restoration of paved or permanent roads or parking areas, or the construction, alteration, repair or replacement of public buildings or public works.
4. The project does not include public lands that have the following designations: National Wilderness Preservation System, where removal of vegetation is prohibited or restricted by Act of Congress or Presidential Proclamation including the applicable implementation plan, or Wilderness Study Areas.

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5. The BLM provides or approves all silviculture prescriptions and marking guidelines for projects that include the sale of forest products.
6. Although the agreement or contract may allow a cooperating entity to provide National Environmental Policy Act (NEPA) services and site surveys, the decision to authorize a project remains the responsibility of the BLM and cannot be delegated.

GNA projects constitute the use of one or more of the following authorizations:

1. A sole source contract or cooperative agreement citing a GNA Notice of Funding Opportunity or a single source with a Notice of Intent to award to a state government entity, county entity, or Indian tribe. (Stewardship contracting cannot be used in conjunction with GNA).
2. A contract or agreement where the cooperating entity is serving as an agent in providing up to all services necessary to carry out Authorized Restoration Services.
3. A contract or agreement with a state government entity that authorizes the sale of timber and allows the state to retain receipts from the sale to fund authorized restoration services on BLM land under the existing agreement or contract, or another authorized good neighbor project in the state if there are funds remaining after carrying out restoration services under the existing agreement. This authority expires on October 1, 2023.

History of the Good Neighbor Authority. The GNA was first authorized by Congress as a pilot acquisition authority for the U.S. Forest Service and the State of Colorado in 2000 through PL 106-291. The BLM was first granted GNA in 2004 through PL 108-447. The purpose of the authority was to facilitate cooperation between state and Federal land managers on watershed restoration and protection projects where mixed ownership properties within the project area existed and conditions were such that efficiency would be gained by allowing the state to implement treatments across Federal, state, and private land. While originally focused on forest projects, GNA is available and appropriate to use across multiple programs including range, wildlife, and fuels management, and line officers are encouraged to partner with states to complete authorized restoration services across all applicable programs.

The GNA provides another mechanism for the BLM and its state, county, and tribal partners to work across jurisdictional boundaries. It fosters collaboration to address land management challenges; provides the ability to leverage state partner resources and efficiencies to increase capacity to accomplish work on BLM-managed lands; and provides an opportunity to strengthen Federal/state partnerships.

2. Nature and/or description of the action being approved:

Approval of this Justification for Other Than Full and Open Competition, will permit negotiation and award of a firm fixed priced (FFP), Indefinite Delivery, Indefinite Quantity (IDIQ) direct award contract to the Utah State University National Aquatic Monitoring Center (USU-NAMC) to provide aquatic collection monitoring services.

Soliciting services by use of other than full and open competition is authorized by the Good Neighbor Authority (GNA), amended by the Agriculture Improvement Act of 2018 (Farm Bill), PL 115-334, as provided in BLM Instruction Memorandum (IM) 2022-023 and as authorized by the statute of 16 USC 2113a, Good neighbor authority.

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A direct award IDIQ contract will allow BLM to efficiently issue task orders detailing the specific field data information required to provide current aquatic ecosystem conditions to the BLM Aquatic Resources Program over the five-year period of performance.

Use of the Good Neighbor Authority has facilitated collaboration of state and federal land management and collaboration of aquatic ecosystems and provided efficiencies and consistency implementing standards for aquatic monitoring, treatments, and restoration. Since then, collaboration and the consistent data obtained under the GNA have been instrumental in shaping BLM's restoration efforts, methods, and training.

Pursuant to BLM Instruction Memorandum (IM) 2022-023 and the requirements set forth by BLM's Good Neighbor Authority Guidance (2021), this contract action has been coordinated with the State Office Good Neighbor Coordinator and determined within scope of GNA approved projects. Reference contract file A09 "Good Neighbor Project Approval" for a signed copy of the required project approval.

The GNA permits BLM to contract with a Governor or other appropriate executive official. The Governor of Utah appoints the members of the Utah Board of Higher Education which administers Utah State University. In accordance with the requirements of BLM's Good Neighbor Authority Guidance (2021), the authorized representative of Utah State University provided certification that Utah State University has the authority to enter contracts under the GNA. This certification may be referenced in the contract file C54 "GNA Official Certification".

3. A description of the services required and its estimated value to meet the Agency's needs:

The overall ceiling value for the IDIQ contract contemplated with a five-year ordering period (FY24 – FY29) is estimated at \$2M based on historical requirements and on future workload forecasts. This amount is projected to allow the BLM Division of Wildlife, Aquatics, and Environmental Protection to adequately accomplish its mission.

This support reinforces BLM's priority to improve the health and productivity of public lands pursuant to the Federal Land Policy Management Act (FLPMA). The required contracted support reinforces BLM's priority to improve the health and productivity of public lands pursuant to the Federal Land Policy Management Act (FLPMA). The information obtained by these contracted services provide aquatic monitoring data to specifically (1) enhance water resource availability, (2) develop and protect natural springs, and (3) identify and remove pollutants and invasive riparian species. Services will enhance the nation's ability to continue to provide dependable water supplies for drinking, for agriculture, and for domestic livestock, in countless recreational opportunities, and even in the planning of America's energy sources.

In general, the information provided by the contract is used to assist in our nation's capabilities to continue the ability to provide dependable water supplies for drinking, and for agriculture and domestic livestock, in countless recreational opportunities, and even in the planning of America's energy sources. The contract will specifically provide services.

The following support services, detailed in the Performance Work Statement (PWS), will be provided to the BLM under this IDIQ contract: (1) Macroinvertebrate sample processing to determine the biological condition of freshwater systems, as well as chemical and physical habitat quality to support aquatic organisms; (2) Data storage, index computation and reporting requires the contractor to

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provide taxonomic information from all samples, including sample location, field methods, laboratory methods, which are entered into a database and made publicly available; (3) Individual Waterbody or Watershed Assessments which determines the chemical, physical and/or biological condition of individual systems or populations of freshwater bodies located within a watershed, state, ecoregion, or other specified reporting region; and (4) Training Support for BLM provided training related to assessment and monitoring design, field methods, and/or data analysis and reporting, in accordance with BLM and AIM training standards.

4. **The statutory authority of 41 U.S.C 3304(a)(5) permits other than full and open competition using the Good Neighbor Authority (GNA), which is authorized by statute as implemented by FAR 6.302-5.**

Select one of the following:

- ☐ 41 U.S.C. 3304 (a)(1), only one responsible source and no other supplies or services will satisfy agency requirements as implemented by FAR 6.302-1.
- ☐ 41 U.S.C. 3304 (a)(2)), unusual and compelling urgency as implemented by FAR 6.302-2.
- ☐ 41 U.S.C. 3304(a)(3)), industrial mobilization; engineering, developmental, or research capability; or expert services as implemented by FAR 6.302-3.
- ☐ 41 U.S.C. 3304 (a) (4)), international agreement as implemented by FAR 6.302-4.
- ☒ **41 U.S.C 3304 (a)(5), authorized or required by statute as implemented by FAR 6.302-5.**
- ☐ 41 U.S.C. 3304(a)(6), national security as implemented by FAR 6.302-6.
- ☐ 41 U.S.C. 3304 (a)(7)), public interest as implemented by FAR 6.302-7.

5. **A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:**

Since 1996 the Utah State University National Aquatic Monitoring Center (USU-NAMC) has successfully worked with numerous federal and state agencies, including the BLM and other Department of Interior (e.g., National Park Service, United States Fish and Wildlife Services, United States Geological Survey) agencies; the Department of Agriculture (e.g., United States Forest Service); and various state agencies (e.g., Utah Department of Environmental Quality, Colorado Department of Public Health and the Environment) to collaboratively standardize the assessment and efficacy of aquatic resources, and to help identify and prioritize areas in need of restoration and reclamation actions.

The USU-NAMC is considered as a center of excellence for freshwater assessment and monitoring tool development and training, aquatic invasive species detection and prevention, and biomonitoring. The USU-NAMC has the knowledge, skills, resources (space, equipment, and personnel), and expertise to provide mission critical aquatic data collection and monitoring support compliant with federal and state environmental regulations. Information obtained permits the BLM to assess current conditions, trends, and threats to aquatic ecosystems; to prioritize stream, riparian and watershed restoration and/or reclamation activities; and to assess the effectiveness of restoration or reclamation actions in an adaptive management context. The level of support and quality of data obtained by the

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USU-NAMC are critical to the BLM's priorities of improving the health and productivity of public lands to facilitate efforts in energy development, recreation opportunities, and cattle grazing.

Utilizing the GNA for aquatic monitoring services aligns with BLM's mission to manage public lands sustainably. The selected contractor's expertise and efficient implementation make this approach the most suitable method to obtain needed consistency of data collection.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

A notice of intent to award a sole source contract was posted to the Government Point of Entry (SAM.gov), as required in FAR Subpart 5.2. No responses were received.

7. A determination By the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:

As the Contracting Officer, I determine that the anticipated cost to the Government will be fair and reasonable in accordance with FAR 13.106-3 for these services based on adequacy of sufficient market research available. The data available will allow for a comparison of historical prices paid in other acquisitions, and for an understanding of industry standards and prevailing market rates for similar, commercial services.

8. A description of the Market Research conducted (see FAR Part 10) and the results:

A small, socio-economically disadvantaged, and Indian Small Business Economic Enterprise (ISBEE) business set-aside is not suitable for this requirement based on market research resulting in the determination that it is in the Government's best interest to award a sole source contract to USU-NAMC using the Good Neighbor Authority (GNA) for this effort. Although services are determined commercial, qualified providers are scarce and primarily have provided aquatic monitoring for local, state, and federal agencies. To be qualified under this IDIQ, a vendor would need to have the resources, technical capability, required capacity, and experience needed to provide the level of services needed to support monitoring of all samples obtained by the BLM, at a fair market price.

Market research included review of all required and mandatory use sources pursuant to FAR Part 8, DOI-AAAP-088, DOI-AAAP-0145, and BLM policies. The use of Federal Strategic Sourcing Initiatives (FSSI), Best-in-Class Solutions (BICs), as well as Federal Supply Schedules and existing GSA vehicles were reviewed for this requirement. Internet searches included review of historical purchasing information on the DOI Historical Vendor Research Dashboard; a search for Indian owned businesses, IEEs, and ISBEEs in SAM.gov, as well as research using the Acquisition Gateway's Solutions Finder tool.

Under the applicable NAICS code, historical purchasing information from the DOI Historical Vendor Research Dashboard returned 29 large firms and only one small firm. Another dashboard search using

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keywords “aquatic monitoring” returned only one large business and one SDB firm. The search for Indian owned businesses under the applicable NAICS code on the native American Business tool in sam.gov returned 13 vendors, none of which believed to have the resources and expertise to perform the services to meet the BLM needs for this requirement.

Company Name	UEI	Company State	NAICS Code and Title
ADVANCED FURNITURE SYSTEMS, LLC	D5JEVMJ8LW58	ND	611310 - Colleges, Universities, and Professional Schools
ARROWPOINT CONSULTING AND PRODUCTIONS L.L.C.	EUTCLLJL4C77	OK	611310 - Colleges, Universities, and Professional Schools
CHEROKEE INSIGHTS LLC	FAHJL6MBXS15	OK	611310 - Colleges, Universities, and Professional Schools
CHEROKEE NATION STRATEGIC PROGRAMS, L.L.C.	PQNNHF72NNM6	OK	611310 - Colleges, Universities, and Professional Schools
ECO POINT CHARGE LLC	YJ8KXNB93J6	AZ	611310 - Colleges, Universities, and Professional Schools
HCI MANAGEMENT SERVICES COMPANY	XQJMR89SR6J7	NE	611310 - Colleges, Universities, and Professional Schools
NATIVE MACRO SOLUTIONS LLC	CWXLNJ33K17	NJ	611310 - Colleges, Universities, and Professional Schools
ONEIDA PROFESSIONAL SERVICES LLC	Z1XNFH26E232	WI	611310 - Colleges, Universities, and Professional Schools
SIOUX INDIAN CONTRACTING LLC	VEK7U1XXVMB1	SD	611310 - Colleges, Universities, and Professional Schools
SUSTAINMENT & RESTORATION SERVICES LLC	XL5MDGTGGD58	CA	611310 - Colleges, Universities, and Professional Schools
SUSTAINMENT & RESTORATION SERVICES, LLC	JJM5BPY5NUK1	WI	611310 - Colleges, Universities, and Professional Schools
WARE RIVER CONSULTING LLC	JGVTMURS5JN1	VA	611310 - Colleges, Universities, and Professional Schools
WAREBROOK HEALTH, LLC	KC2NU2WBFM79	VA	611310 - Colleges, Universities, and Professional Schools

9. Any other facts supporting the use of Other Than Full and Open Competition:

N/A

10. A listing of the sources, if any, that expressed in writing, an interest in the acquisition:

A notice of proposed contract action, intent to issue a sole source contract award was posted on June 12, 2024, to the GPE, SAM.gov. The notice requested interested and capable parties to respond in writing to the Contracting Officer by July 27, 2024. No responses were received.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the Supplies or Services required:

Based on the lack of responses received from the synopsis, and historical procurement strategies for these services, it is determined in the best interest of the Government to conduct this acquisition on a sole source basis as authorized by statute of the Good Neighbor Authority.

Due to mission criticality and timing (i.e. weather constraints effecting aquatic samples), the current procurement cannot be delayed allowing additional time for the technical evaluation board to determine technical capability of an alternate offer, consideration will be given to include language to permit submission of alternate offers for a future award.

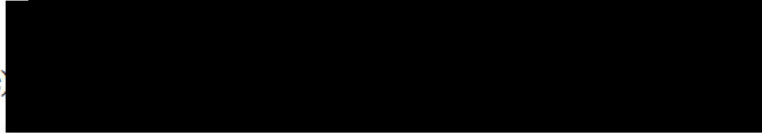
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CERTIFICATION

12. Contracting Officer's Representative (COR) Certification:

As the BLM Senior Natural Resources Specialist and COR for this acquisition, I certify that any supporting data that is the responsibility of technical or requirements personnel (i.e. verifying the Government's minimum needs or schedule requirements or other rationale for other than full and open competition) and which form a basis for the justification have been certified as complete and accurate.

(Signature)

A large black rectangular redaction box covering the signature of the Contracting Officer's Representative.

13. Contracting Officer's (CO) Certification:

As the Contracting Officer for this acquisition, I certify that this justification is accurate and complete to the best of my knowledge and belief, and that the cost to the Government is anticipated to be fair and reasonable.

(Signature)

A large black rectangular redaction box covering the signature of the Contracting Officer.

(Date)

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REVIEW

*Note: Peer and Legal/Solicitor Reviews are filed separately under contract file, Tab A16.

14. Section Chief Review and Concurrence:

As the Branch Chief of the NOC Acquisitions Contracting Office, I have reviewed this justification reasonable

(Signature)

15. Branch Chief Review and Concurrence:

As the Branch Chief of the NOC Acquisitions Contracting Office, I have reviewed this justification reasonable.

(Signature)

APPROVAL

16. Bureau Competition Advocate Approval:

As the Competition Advocate for the BLM, I approve this justification to use other than full and open competition for this acquisition.

(Signature)